

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

February 24, 2020

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Ken Esquibel, Pete Laybourn (arrived at 6:03 p.m.), Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Also present: Kylie Soden, Deputy City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. White, and pursuant to support received by Mr. Cook and Mr. Case, agenda item #18 (a) was removed from the Consent Agenda. Mr. Luna moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on February 10, 2020. Motion (per Consent Agenda) carried.

[CA] Minutes from the Special Meeting of the Governing Body on February 11, 2020. Motion (per Consent Agenda) carried.

Mayor Orr opened a public hearing for a microbrewery liquor license application filed with the City Clerk’s Office for Black Tooth Brewing Company, LLC d/b/a/ Black Tooth Brewing, 520 W. 19th St., Cheyenne, Wyoming. There being no comments or input and purpose of the hearing having been met, the item was referred to the Finance Committee and Mayor Orr closed the hearing.

Mayor Orr opened a public hearing for renewal of existing City liquor licenses (retail, restaurant, limited retail, resort, bar and grill licenses, microbrewery, satellite distillery, winery and special malt beverage permits) filed with the City Clerk’s Office. There being no comments or input and purpose of the hearing having been met, the item was referred to the Finance Committee and Mayor Orr closed the hearing.

ORDINANCE – 2nd READING – Amending Chapter 5.52, Massage Establishments, within Title 5, Business Licenses and Regulations, of the Municipal Code of the City of Cheyenne, Wyoming. Rachael Wetzel commented on the importance of the ordinance for women in the community, the need for the availability of breast massage services within city limits where there are regulations and spoke in support of the ordinance. Mayor Orr expressed her appreciation to

Ms. Wetzel for her involvement and for bringing the issue forward for consideration. City Attorney Michael O'Donnell advised he has been in contact with the Director of the Environmental Health Department related to the requirement of a medical referral for breast massage service patients and that they endorse the ordinance. Reporting for Public Services Committee, Mr. Case moved to approve on second reading, seconded by Mr. Luna. Mr. Case moved to amend by substitute dated February 24, 2020 which includes striking language "or distance learning school" in Section 5.52.105 (a)(2) and Section 5.52.105 (b)(2), seconded by Mr. Luna. Motion to amend by substitute carried. Voting "yes" – all members of the governing body. Main motion as amended carried. Voting "yes" – all members of the governing body.

ORDINANCE – 2nd READING – Amending Chapters 8.40, Food and Food Service Establishments, within Title 8, Health and Safety, of the Municipal Code of the City of Cheyenne, Wyoming, and Chapters 10.52, Stopping, Standing and Parking Generally, and 10.68, Critical Traffic and Parking Areas, within Title 10, Vehicles and Traffic, of the Municipal Code of the City of Cheyenne, Wyoming. Mr. Case moved to approve on second reading, seconded by Mr. Roybal. Motion carried. Voting "yes" – all members of the governing body.

ORDINANCE – 2nd READING – Amending Chapters 10.12, Administration and Enforcement, 10.16, Arrest and Citation Procedure, 10.52, Stopping, Standing and Parking Generally, 10.60, Parking Limitations, 10.64, Loading and Unloading, within Title 10, Vehicles and Traffic, of the Municipal Code of the City of Cheyenne, Wyoming. Mr. Case moved to approve on second reading, seconded by Mr. Luna. Motion carried. Voting "yes" – all members of the governing body.

ORDINANCE – 1st READING – Amending Section 10.12.130, City Traffic Engineer, of Chapter 10.12, Administration and Enforcement, of Title 10, Vehicles and Traffic, of the Municipal Code of the City of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsor – Mr. Case)

ORDINANCE – 1st READING – Creating Section 2.04.200, Purchasing Policy, of Chapter 2.04, Mayor and City Council, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming – referred to Finance Committee. (Sponsor – Mr. Case)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Alliance Addition, 4th Filing, a replat of a portion of Lot 1, Block 1, Alliance Addition, Cheyenne, Laramie County, Wyoming (located at the northwest corner of the intersection of Ridge Road and Jackson Street. Mr. Case moved to adopt, seconded by Mr. Luna. Comment was made on the proposed land use worsening existing parking issues in the area. Motion failed. Voting "yes" – Mr. Case, Mr. Laybourn, Mr. Shanor and Mr. White. Voting "no" – Mr. Cook, Mr. Esquibel, Mr. Luna, Mayor Orr, Dr. Rinne and Mr. Roybal.

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Buffalo Ridge Estates, 11th Filing, a replat of Lot 15, Block 21, Buffalo Ridge Estates, Cheyenne, Laramie County, Wyoming (located southeast of the intersection of Hilltop Avenue and Bluff Place). Mr. Case moved to adopt, seconded by Mr. White. Concern was expressed related to the lot size and

the proposal of dividing the lot into 2 residential lots. Motion failed due to a tie vote. Voting “yes” – Mr. Esquibel, Mr. Laybourn, Mr. Roybal, Mr. Shanor and Mr. White. Voting “no” – Mr. Case, Mr. Cook, Mr. Luna, Mayor Orr and Dr. Rinne.

[CA] RESOLUTION – Creating a Revolving Real Property Special Revenue Fund to account for the acquisition and resale of real property of the City of Cheyenne – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Authorizing the City of Cheyenne to approve and file the Wyoming Division of Victim Services Funding Application State Fiscal Year 2021 and 2022, July 1, 2020 to June 30, 2022 – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Reappropriating the Fiscal Year 2020 Budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 & §16-4-113 – referred to Finance Committee. (Sponsors – Mr. Case, Mr. Luna, Mr. Roybal and Mr. Shanor)

Development Agreement between the City of Cheyenne and Blue Federal Credit Union, Inc., for the redevelopment and access at the Pershing Boulevard/Converse Avenue/19th Street Roundabout. City Engineer Tom Cobb explained the agreement is for possible operational improvements and public access in perpetuity for the free right turn and north sidewalk. Mr. White moved to approve, seconded by Mr. Luna. Mr. White moved to amend by substitute Exhibits A, B and C that were distributed electronically on February 21, 2020 seconded by Mr. Luna. Motion to amend by substitute exhibits carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. (#7149)

[CA] Professional Services Agreement between the City of Cheyenne and Audiomatrix Inc., for the City of Cheyenne Public, Educational, and Governmental (PEG) Access Channel Programming Equipment and Production Equipment Upgrade Project (2015-2018 1% Sales Tax, Charter Equipment Funding Grant). Motion (per Consent Agenda) carried (in an amount not to exceed \$74,537.65). (#7150)

[CA] Agreement between the City of Cheyenne and Laramie County School District Number One to provide transportation services for the Community Recreation & Events Summer Rec Camp Program (Recreation Program Fees) – referred to Finance Committee.

[CA] Consideration of Bid #E-11-20 for furnishing one (1) new 2019-2020 ¾ ton regular cab, full size pickup truck and one (1) new 2019-2020 ¾ ton ext. cab, full size pickup truck for the City of Cheyenne, Parks Division (2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid from Spradley Barr Motors, Cheyenne, in an amount not to exceed \$67,703.00).

[CA] Consideration of Bid #E-6-20 for furnishing a minimum of three (3) to a maximum of ten (10), lift-equipped transit vehicles, for the City of Cheyenne, Transit Division. (FTA Transit Development Grant) – referred to Finance Committee.

[CA] Restaurant liquor license application filed with the City Clerk's Office for C & Z LLC, d/b/a China Buffet, 1958 Dell Range Blvd., Suite D, Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

Voucher Report. No comments were made.

Revenue Report. No comments were made.

Announcement was made of a Public Hearing to be held March 9, 2020 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a retail liquor license renewal application filed with the City Clerk's Office for Deep South LLC d/b/a Redwood Lounge, 2105 E. Lincolnway, Cheyenne, Wyoming.

Under other business:

Downtown Development Authority Executive Director Amber Ash made comments on agenda item #9 which included the importance of food trucks in the community and concern for food trucks being able to park in front of businesses for long periods of time. Ted Miazga, Parking Manager, Cheyenne Police Department, clarified the ordinance is to establish the option of food trucks being able to stay longer than 2 hours in front of a business if they are requested to be there.

Police Chief Brian Kozak provided an update on Calea accreditation the Police Department is looking to obtain. He explained it is a 3-year process and he is seeking governing body input before it is finalized. Upon inquiry, Chief Kozak provided information on the accreditation program stating law enforcement has 181 different standards, many of which are high liability, and the program is to improve the delivery of public safety services and best practices. He explained the department is seeking 1st level accreditation and the Wyoming Association of Risk Management will pay for the membership. Upon further inquiry, Chief Kozak advised the accreditation may prove helpful when applying for grant funding. Mr. Laybourn moved to approve and appreciate the Police Department's accreditation application. Concern was expressed related to approval of an item that hasn't been previously reviewed. Mayor Orr advised Chief Kozak sent an email with accreditation information and it can be re-sent to council members. Motion failed due to lack of a second. [Clerk's note: items that have not been reviewed by a standing committee are not eligible for consideration of approval by the governing body]

Mr. White reported the motion to adopt the following ordinance - Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map of the Unified Development Code, changing the zoning classification from LR Low Density Residential to NR-2 Neighborhood Residential - Medium Density for the west half of Lot 2 and all of Lot 3, Sunnyside Addition, 8th Filing, Cheyenne, Wyoming (located at the southeast corner of Dell Range Blvd. and Van Buren Ave.) failed on 3rd and final reading at the February 10, 2020 City Council meeting. Having voted on the prevailing side and pursuant to Chapter 2.04 of City Code, Mr. White moved to reconsider the vote taken on the ordinance, seconded by Mr. Cook. Mr. White advised he reviewed additional information involving the ordinance related to the required notification process and requested support for the motion to reconsider. Motion failed

due to a tie vote. Voting “yes” – Mr. Cook, Mayor Orr, Mr. Roybal, Mr. Shanor and Mr. White.
Voting “no” – Mr. Case, Mr. Esquibel, Mr. Laybourn, Mr. Luna and Dr. Rinne.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:28 p.m.

Submitted by,

Kylie Soden, Deputy City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
March 3, 2020